

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Filed: October 30, 2019

JOSEPH ALCINE,

INDEX NO.

Plaintiff,

Plaintiff designate Kings
County as the place of trial.

-against-

S U M M O N S

THE CITY OF NEW YORK, PO CHRISTINE ROMAN,
Shd. No. 18956, P.O. BRANDON PATANE, and
SGT. ALAN CHAU,

The basis of venue is the
County in which the cause
of action arose.

Defendants.

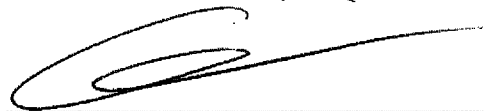
To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in the above action and to serve a copy of your answer on the Plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of their action.

Dated: Brooklyn, New York
October 30, 2019

MILLER & MILLER, ESQS.



By: Andrew Miller, Esq.
Attorneys for Plaintiff
JOSEPH ALCINE
26 Court Street, Suite 2511
Brooklyn, New York 11242
Tel. No.: (718) 522-0023

TO: THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

PO CHRISTINE ROMAN, Shd. No. 18956
2820 Snyder Avenue
Brooklyn, New York 11226-4118

SGT ALAN CHAU
2820 Snyder Avenue
Brooklyn, New York 11226-4118

PO BRANDON PATANE
2820 Snyder Avenue
Brooklyn, New York 11226-4118

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

JOSEPH ALCINE,

Plaintiff,

INDEX NO.

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, PO CHRISTINE ROMAN,
Shd. No. 18956, P.O. BRANDON PATANE, and
SGT. ALAN CHAU,

Defendants.

Plaintiff, by his attorneys, LAW OFFICES OF MILLER & MILLER, as and for his Verified
Complaint, respectfully alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION
(FALSE ARREST & IMPRISONMENT)

1. The Plaintiff, JOSEPH ALCINE, at all times herein mentioned was and still is a resident of the Kings County, State of New York.
2. At all times herein mentioned, defendant THE CITY OF NEW YORK (hereinafter the "CITY"), was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.
3. That at all times mentioned herein, defendant CITY operated, maintained, managed, and controlled the Police Department of the City of New York.
4. That the Police Department of the City of New York is an agency, instrumentality, department of defendant CITY, and/or defendant CITY derived benefit from the activities of the Police Department of the City of New York.

5. The defendant PO CHRISTINE ROMAN, Shd No. 18956, (hereinafter "ROMAN"), at all times herein mentioned was employed by the Police Department of the City of New York as a police officer.

6. That at all times mentioned herein, defendant ROMAN was acting within the scope of his employment as a police officer employed by the Police Department of the City of New York.

7. That at all times mentioned herein, defendant ROMAN was acting under color of law and authority as a police officer employed by the Police Department of the City of New York.

8. The defendant PO BRANDON PATANE, (hereinafter "PATANE"), at all times herein mentioned was employed by the Police Department of the City of New York as a police officer.

9. That at all times mentioned herein, defendant PATANE was acting within the scope of his employment as a police officer employed by the Police Department of the City of New York.

10. That at all times mentioned herein, defendant PATANE was acting under color of law and authority as a police officer employed by the Police Department of the City of New York.

11. The defendant SGT ALAN CHAU, (hereinafter "CHAU"), at all times herein mentioned was employed by the Police Department of the City of New York as a police officer.

12. That at all times mentioned herein, defendant CHAU was acting within the scope of his employment as a police officer employed by the Police Department of the City of New York.

13. That at all times mentioned herein, defendant CHAU was acting under color of law and authority as a police officer employed by the Police Department of the City of New York.

14. Prior to the commencement of this action, a notice of claim in writing was served on behalf of Plaintiff upon THE CITY OF NEW YORK in accordance with Section 50-e of the General Municipal Law.

15. Within ninety days (90) of the occurrence herein, a notice of claim in writing was served on behalf of Plaintiff, upon THE CITY OF NEW YORK in accordance with Section 50-e of the General Municipal Law.

16. Prior to the commencement of this action, notice of the intention of Plaintiff to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by applicable law to adjust such claims, was served on behalf of Plaintiff upon THE CITY OF NEW YORK.

17. Although more than thirty (30) days have elapsed since service of such notice of claim, THE CITY OF NEW YORK neglected and has refused to pay said claim or adjust same.

18. That the Plaintiff has fully complied with defendants demand for examination or that said demand has been otherwise waived.

19. That this action is being commenced within one year and ninety days after the happening of the event upon which the claim is based.

20. On or about August 4, 2018, in the County of New York, New York, the Plaintiff was unlawfully detained, arrested, imprisoned and subsequently prosecuted under Arrest Number K18646160 by agents, servants and/or employees of defendant CITY, including defendants ROMAN, PATANEE, and CHAU who at that time was police officers acting within the scope of their employment.

21. That the aforesaid arrest and imprisonment was malicious, unlawful and not based upon a warrant, probable cause, and/or any other justification, and was therefore a false arrest and imprisonment.

22. That defendant CITY, through its agents, servants and/or employees, including defendants ROMAN, PATANEE, and CHAU acted in bad faith and without probable cause in committing the aforesaid arrest and imprisonment of Plaintiff.

23. At the time of his unlawful arrest and imprisonment, Plaintiff had not committed or attempted to commit any illegal act.

24. At the time of Plaintiff's unlawful arrest and imprisonment, the defendants knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned arrest and imprisonment was false and without probable cause.

25. That the aforesaid arrest and imprisonment was made with knowledge of and/or negligent and/or reckless disregard of the material falseness of the criminal complaint(s).

26. The aforesaid false arrest and imprisonment caused Plaintiff to suffer severe physical injuries, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, loss of wages, legal expenses, and damage to his reputation.

27. The defendants' conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard for human life, safety and the rights of others, and more particularly, the rights, life and safety of Plaintiff; and was motivated by consideration of profit, financial advantage, monetary gain, economic aggrandizement and/or cost avoidance, to the virtual exclusion of all other considerations.

28. By reason of the foregoing, the defendants became liable to the Plaintiff for damages and punitive damages in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
(FALSE IMPRISONMENT)

29. Plaintiff repeats and reiterates the allegations contained in paragraphs number above as if fully set forth herein.

30. That following the initial arrest and detention on August 4, 2018, the Plaintiff was wrongfully detained until August 5, 2018, by the Defendants at a penal facility.

31. That defendants acted in bad faith and without probable cause in committing the aforesaid detention of Plaintiff.

32. At the time of his unlawful detention Plaintiff had not committed or attempted to commit any illegal act.

33. At the time of Plaintiff's unlawful detention, the defendants knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned detention was improper and without probable cause.

34. That the aforesaid detention was made with knowledge of and/or negligent and/or reckless disregard of the material falseness of the criminal complaint(s).

35. That during the aforementioned detention, the Plaintiff suffered physical and emotional abuse resulting from the conditions of his detention.

36. That the conditions of his detention violated the Plaintiff's right to be secure in his person while being detained by the Defendants.

37. That the defendants were deliberately indifferent to the conditions that lead to the physical and emotional abuse suffered by the Plaintiff during his detention.

38. That the Defendants established a custom policy and/or practice of encouraging, approving and/or tolerating conditions of confinement that violated detained citizens rights to be

secure in their person and subsequent attempts to conceal such actions by failing to adequately train, supervise, and discipline its agents, employees and offices.

39. That the Defendants' wrongfully detained the Plaintiff in the substandard conditions until the dismissal of the charges against him.

40. The aforesaid detention caused Plaintiff to suffer severe physical injuries, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, loss of wages, legal expenses, and damage to his reputation.

41. By reason of the foregoing, the defendants became liable to the Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION
(MALICIOUS PROSECUTION)

42. Plaintiff repeats and reiterates the allegations contained in paragraphs number above as if fully set forth herein.

43. On or about August 4, 2018, the defendants intentionally, knowingly, recklessly, negligently and with malice caused the commencement of a criminal prosecution against the Plaintiff, without probable cause.

44. In commencing and continuing the said malicious prosecution, defendants caused Plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York

45. The Plaintiff had not committed or attempted to commit any illegal act(s).

46. The Plaintiff had not given defendant CITY, its agents, servants and/or employees, including defendants ROMAN, PATANEE and CHAU probable cause to believe that he had committed the falsely charged illegal acts.

47. The defendants knew, or should have known through the exercise of reasonable care and proper police procedure, that the said investigation into this matter was flawed and incomplete.

48. The defendant CITY, its agents, servants and/or employees, including defendants ROMAN, PATANEE, and CHAU wilfully, negligently and wrongfully accused the Plaintiff of having committed acts in violation of the Penal Law of the State of New York.

49. The defendant CITY, its agents, servants and/or employees, including defendants ROMAN, PATANEE and CHAU wilfully, negligently and wrongfully continued to prosecute the Plaintiff for alleged violations of the Penal Law of the State of New York, even though the defendants knew or should have known of facts and circumstances that would have lead a reasonable person to conclude that the criminal complaint, upon which said criminal prosecution was based, contained material falsehoods and was otherwise improper, and that the continued prosecution of the Plaintiff was, therefore, improper under the circumstances.

50. That on information and belief, the criminal prosecution against the Plaintiff was dismissed on August 5, 2018.

51. As a result of the malicious prosecution, the Plaintiff was caused to suffer and continue to suffer severe personal injury, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of wages, legal expenses and damage to his reputation.

52. The defendants' conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard for human life, safety and the rights of others, and more particularly, the rights, life and safety of Plaintiff; and was motivated by consideration of profit, financial advantage, monetary gain, economic aggrandizement and/or cost avoidance, to the virtual exclusion of all other considerations.

53. By reason of the foregoing, the defendants became liable to the Plaintiff for damages and punitive damages in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION
(ASSAULT/BATTERY/NEGLIGENT CONTACT)

54. Plaintiff repeats and realleges each and every allegation contained in paragraphs numbered above as if fully set forth at length herein.

55. ROMAN, PATANEE and CHAU's acts, along with those acts of the other police officers who's identities are presently unknown to the Plaintiff who assisted in the arrest of the Plaintiff, caused Plaintiff to apprehend and/or fear unfriendly contact.

56. A reasonable person in the same circumstances as Plaintiff would have apprehended and/or feared unfriendly contact.

57. ROMAN, PATANEE and CHAU were in the employ of the defendants, when Plaintiff was assaulted.

58. The assault, as aforesaid, was within the scope of ROMAN, PATANEE, and CHAU's employment.

59. The defendants assaulted Plaintiff.

60. ROMAN, PATANEE, and CHAU's acts, along with those acts of the other police officers who's identities are presently unknown to the Plaintiff who assisted in the arrest of the Plaintiff, were intended to make contact with Plaintiff.

61. ROMAN, PATANEE and CHAU and the other police officers who's identities are presently unknown to the Plaintiff who assisted in the arrest of the Plaintiff made contact with Plaintiff.

62. ROMAN, PATANEE and CHAU and the other police officers who's identities are presently unknown to the Plaintiff who assisted in the arrest of the Plaintiff, battered Plaintiff.

63. The battery as aforesaid, was within the scope of ROMAN, PATANEE and CHAU's employment.

64. The defendants battered Plaintiff.

65. At all times herein mentioned, the person of ROMAN, PATANEE, and CHAU and that of the other police officers who's identities are presently unknown to the Plaintiff who assisted in the arrest of the Plaintiff, negligently, carelessly and recklessly came into harmful contact with the person of Plaintiff.

66. Plaintiff was thereby caused to be injured on August 4, 2018.

67. The defendants' conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard for human life, safety and the rights of others, and more particularly, the rights, life and safety of Plaintiff; and was motivated by consideration of profit, financial advantage, monetary gain, economic aggrandizement and/or cost avoidance, to the virtual exclusion of all other considerations.

68. Due to defendants' actions, plaintiff is entitled to damages and punitive damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION
(INFLECTION OF EMOTIONAL DISTRESS)

69. Plaintiff repeats and reiterates the allegations contained in paragraphs numbered above as if fully set forth herein.

70. The aforementioned actions of defendants were so outrageous, malicious and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

71. Defendants acted with the desire and intent to cause Plaintiff emotional distress or acted under circumstances known to them which made it substantially certain that they would cause such emotional distress.

72. Defendants intentionally, knowingly, wilfully, recklessly, negligently and wrongfully caused Plaintiff emotional distress or acted under circumstances known to them which made it substantially certain that they would cause such emotional distress.

73. Defendants acted with utter disregard of the consequences of their actions.

74. As a result, Plaintiff was caused to suffer the infliction of emotional distress.

75. The defendants' conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard for human life, safety and the rights of others, and more particularly, the rights, life and safety of Plaintiff; and was motivated by consideration of profit, financial advantage, monetary gain, economic aggrandizement and/or cost avoidance, to the virtual exclusion of all other considerations.

76. By reason of the foregoing, defendants became liable to Plaintiff for damages and punitive damages in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION
(NEGLIGENCE)

77. Plaintiffs repeat and reiterate the allegations contained in paragraphs numbered above as if fully set forth herein.

78. The actions of defendant CITY, through its agents, servants and/or employees, including defendants ROMAN, PATANEE, and CHAU heretofore described constitutes negligence in that defendant CITY negligently trained or failed to train its agents, servants, or employees, especially including defendant ROMAN, PATANEE, and CHAU.

79. The actions of defendant CITY, through its agents, servants, or employees, including defendant ROMAN, PATANEE, and CHAU heretofore described constitutes negligence in that defendant CITY negligently supervised or failed to supervise its agents, servants, or employees, especially including defendant ROMAN, PATANEE, and CHAU.

80. The actions of defendant CITY, through its agents, servants, or employees, including defendant ROMAN, PATANEE, and CHAU heretofore described constitutes negligence in that defendant CITY negligently disciplined or failed to discipline its agents, servants, or employees, especially including defendant ROMAN, PATANEE, and CHAU.

81. Defendant CITY was negligent in its hiring of its agents, servants and/or employees, especially including defendant ROMAN, PATANEE, and CHAU who defendant CITY knew, or in the course of adequate and proper investigation should have reasonably known, were unfit to hold their positions.

82. Defendant CITY was negligent in its retention of its agents, servants and/or employees, especially including defendant ROMAN, PATANEE, and CHAU who defendant CITY knew, or in the course of adequate and proper investigation should have reasonably known, were unfit to hold their positions in that they refused or failed to perform within the statutory and constitutional limits of their authority and misused and abused their positions.

83. Defendant CITY was negligent in its maintenance, custody and control of the penal facility wherein the Plaintiff was detained, and in its failure to provide a reasonably safe and secure environment for the Plaintiff during his detention.

84. That the defendants, their agents, servants, and/or employees were otherwise, and in general, careless, reckless and negligent under the circumstances existing as previously described.

85. All of the causes of action of their complaint are specifically excepted under C.P.L.R. § 1602.

86. As a result of the negligence of defendant CITY and the acts of defendant ROMAN, PATANEE, and CHAU and other agents, servants and/or employees of defendant CITY, without any negligence on the part of Plaintiff, Plaintiff was caused to suffer severe and permanent personal injuries, pain and suffering, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, and loss of wages, legal expenses, and damage to his reputation.

87. The defendants' conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard for human life, safety and the rights of others, and more particularly, the rights, life and safety of Plaintiff; and was motivated by consideration of profit, financial advantage, monetary gain, economic aggrandizement and/or cost avoidance, to the virtual exclusion of all other considerations.

88. By reason of the foregoing, defendants became liable to Plaintiff for damages and punitive damages in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION
(CONVERSION)

89. The Plaintiff repeats and reiterates the allegations contained in paragraphs numbered above as if fully set forth herein.

90. That on August 4, 2018, immediately after the Plaintiff's unlawful detention, defendant CITY and defendant ROMAN, PATANEE, and CHAU and other agents, servants and/or employees of defendant CITY, improperly and illegally seized and converted the Plaintiff's personal property including, but not limited to liquor bottles, beer bottles and United States Currency.

91. That the defendants' conduct was not supported by probable cause or otherwise justified under the law.

92. That the defendants' did not timely move for forfeiture of the aforementioned property, and despite having failed to do so, the defendants, on information and belief, still retain the subject property.

93. The defendants' conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard for human life, safety and the rights of others, and more particularly, the rights, life and safety of Plaintiff; and was motivated by consideration of profit, financial advantage, monetary gain, economic aggrandizement and/or cost avoidance, to the virtual exclusion of all other considerations.

94. Due to defendants' actions, plaintiff is entitled to damages and punitive damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A EIGHTH CAUSE OF ACTION
(CIVIL RIGHTS)

95. The actions of defendants heretofore described resulting from the August 4, 2018, arrest, detention, imprisonment, assault, use of excessive force, and prosecution of the Plaintiff, and conversion of the Plaintiff's property, constitute an unlawful arrest, imprisonment, assault, use of excessive force, and malicious prosecution and conversion of the Plaintiff's property which deprived the Plaintiff of rights, privileges, and immunities as guaranteed under the United States Constitution, Amendments One, Four, Five, and Fourteen, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. §§ 1981, 1983, 1985, 1986, and 1988 and the complained of conduct was either the result of an official policy or unofficial custom, including but not limited to, policies and customs concerning the hiring, training, supervision, retention and discipline of the CITY's agents, servants and/or employees, and those involving the arrest, detention, prosecution of individuals and the conviction of individuals accused of committing penal offenses including and especially, those persons such as the Plaintiffs who are of Haitian ethnic descent.

96. That the Defendants engaged in acts of unduly and excessive force to detain the Plaintiff and to deny him his expression of his First Amendment Rights.

97. That the Defendants established a custom policy and/or practice of encouraging, approving and/or tolerating the use by the NYPD improper and unduly excessive force to detain and imprison persons who were engaged in lawful acts under the First Amendment and subsequent attempts to conceal such actions by failing to adequately train, supervise, and discipline its agents, employees and offices.

98. That the Defendants established a custom policy and/or practice of encouraging, approving and/or tolerating the use by the NYPD of excessive force and other acts of misconduct,

including but not limited to the seizure of property, against civilians and subsequent attempts to conceal such actions by failing to adequately train, supervise, and discipline its agents, employees and offices.

99. That the Defendants established a custom policy and/or practice of encouraging, approving and/or tolerating the use by the NYPD of excessive force and other acts of misconduct, including but not limited to the seizure of property, against civilians and subsequent attempts to conceal such actions by failing to adequately train, supervise, and discipline its agents, employees and offices.

100. That the Defendants established a custom policy and/or practice of encouraging, approving and/or tolerating the use by the NYPD of methods of investigation that involved the fabrication, misrepresentation and concealment of material evidence and other improper investigation techniques and acts of misconduct against civilians and subsequent attempts to conceal such actions by failing to adequately train, supervise, and discipline its agents, employees and offices.

101. That the Defendants were deliberately indifferent to the use of improper procedures in the detention, arrest and prosecution of persons and established a custom and/or policy and/or practice of encouraging, approving and/or tolerating the use of said improper procedures by the NYPD and subsequent attempts to conceal such actions by failing to adequately train, supervise, and discipline its agents, employees and offices.

102. The defendants deprived Plaintiff of his liberty and First Amendment Rights in violation of his civil rights.

103. The defendants actions were undertaken under color of law and would not have existed but for said defendants' use of their official power.

104. That the defendants conspired with each other and acted in concert to discriminate against and deprive the Plaintiff of his Constitutional and Civil rights.

105. The supervisors and policy making officers of defendant CITY and its Police Department and its Office of the District Attorney, Kings County, as a matter of policy, have failed to take steps to terminate the herein above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

106. The defendant CITY has failed to properly or effectively train its agents, servants and/or employees, including defendant ROMAN, PATANEE, and CHAU, with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

107. The defendant CITY has sanctioned the policy and practices heretofore described through its deliberate indifference to the effect of such policy and practices upon the constitutional rights of the Plaintiffs and others similarly situated.

108. That the defendants' motivations were in contravention of the United States Constitution and the Constitution of the State of New York.

109. By reason of the foregoing, the Plaintiff has been damaged and suffered serious and severe permanent physical injuries, property damage, emotional distress and emotional harm as a result of these deprivations of constitutional and civil rights.

110. The defendants' conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard for human life, safety and the rights of others, and more particularly, the rights, life and safety of Plaintiff; and was motivated by consideration of profit, financial advantage, monetary gain, economic aggrandizement and/or cost avoidance, to the virtual exclusion of all other considerations.

111. As a result, the defendants became liable to the Plaintiff for damages and punitive damages in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A NINTH CAUSE OF ACTION
(ATTORNEYS' FEES)

112. The Plaintiff repeats and reiterates the allegations contained in paragraphs numbered above as if fully set forth herein.

113. The actions of defendants heretofore described resulting from the August 4, 2018, arrest, detention, conversion, imprisonment, assault, use of excessive force, and prosecution of the Plaintiffs, constitute an unlawful arrest, imprisonment, assault, use of excessive force, violation of First Amendment Rights, conversion, and malicious prosecution which deprived the Plaintiffs of rights, privileges, and immunities as guaranteed under the United States Constitution, Amendments One, Four, Five, and Fourteen, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. §§ 1981, 1983, 1985, 1986, and 1988 and the complained of conduct was either the result of an official policy or unofficial custom, including but not limited to, policies and customs concerning the hiring, training, supervision, retention and discipline of the CITY's agents, servants and/or employees, and those involving the arrest, detention and prosecution of individuals, including and especially, those persons such as the Plaintiff who are of Haitian ethnic descent.

114. That the Plaintiff has incurred significant attorneys' fees in the prosecution of the above referenced claims against the defendants. That in the event that the Plaintiff is successful in the prosecution of the aforesaid claim(s), Plaintiff shall be prevailing parties within the meaning of 42 USC § 1988 and entitled to the recovery of said attorneys fees from the defendants.

115. As a result, the defendants became liable to the Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

WHEREFORE, Plaintiff respectfully requests judgment against the defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction, together with the costs and disbursements of his action.

Dated: Brooklyn, New York
October 30, 2019

Yours, etc.
~~MILLER & MILLER~~, ESQS.



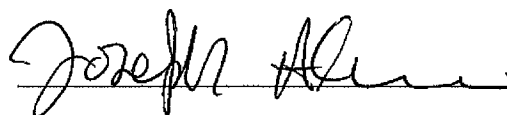
By: Andrew Miller, Esq.
Attorney for Plaintiff
JOSEPH ALCINE
26 Court Street, Suite 2511
Brooklyn, New York 11242
Tel. No.: (718) 522-0023

INDIVIDUAL VERIFICATION

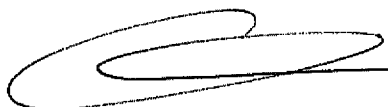
STATE OF NEW YORK)
) s.s.:
COUNTY OF KINGS)

I, JOSEPH ALCINE, being duly sworn, deposes and says: I am the plaintiff in the within action; I have read the foregoing SUMMONS AND VERIFIED COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:
Available records and investigation.



Sworn to before me on this the
30th day of October, 2019



Notary Public

ANDREW MILLER, ESQ.
Notary Public, State of New York
No. 62M16029076
Qualified in Nassau County
Commission Expires August 9, 2019

SUPREME COURT
STATE OF NEW YORK, COUNTY OF KINGS

Index No.

Year

JOSEPH ALCINE,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. CHRISTINE ROMAN, SHD. NO. 18956, P.O. BRANDON
PATANE, AND SGT. ALAN CHAU,

Defendants,

SUMMONS AND VERIFIED COMPLAINT

MILLER & MILLER, ESQS.

ATTORNEYS AT LAW

Attorney(s) for

Plaintiff

Office and Post Office Address, Telephone

26 Court Street, Ste. 2511

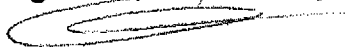
BROOKLYN, NY 11242

TEL (718) 522-0023

FAX (718) 522-0024

To

Signature (Rule 130-1.1-a)



Print name beneath

ANDREW MILLER, ESQ.

Service of a copy of the within is hereby admitted.

Attorney(s) for

Dated: _____

PLEASE TAKE NOTICE:

☐ NOTICE OF ENTRYthat the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on☐ NOTICE OF SETTLEMENTthat an order
will be presented for settlement to the HON.
within named Court, at
on at M.of which the within is a true copy
one of the judges of the

Dated,

Yours, etc.

MILLER & MILLER, ESQS.